

Lekhraj Gambhir v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 22 September 2015 · Writ-C No. 54247 of 2015 · **Writ dismissed; liberty to pursue Clause 6.5.**

HEADNOTE

A writ challenging an electricity demand notice was dismissed at the threshold. Dissatisfaction with the bill is to be taken first to the authority under Clause 6.5 of the Electricity Supply Code, 2005; the petitioner was left to that statutory remedy.

FACTUAL SUMMARY

Lekhraj Gambhir filed a writ petition in the High Court of Judicature at Allahabad against the State of Uttar Pradesh and four others, challenging a demand notice of an electricity bill. After hearing counsel for the petitioner, the State, and the distribution licensee, the Division Bench did not inquire into the correctness of the bill or the demand. The only fact recorded was the petitioner's dissatisfaction with that demand notice, against which the Supply Code provided a statutory objection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-under-clause-6.5

HOLDING

A consumer dissatisfied with an electricity demand notice must first approach the authority under Clause 6.5 of the Electricity Supply Code, 2005; a writ petition is dismissed with liberty to pursue that remedy. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ challenging an electricity demand notice was dismissed at the threshold. Dissatisfaction with the bill is to be taken first to the authority under Clause 6.5 of the Electricity Supply Code, 2005; the petitioner was left to that statutory remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY DEMAND NOTICE AND BILL

The Court did not examine the bill on merits and left the petitioner to Clause 6.5. ¶ 1